

HOUSE No. 1188

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Higgins and Christine P. Barber

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to trans-inclusive health care access.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/15/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/16/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/28/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/29/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/29/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>2/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/8/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>3/4/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/7/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>4/3/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>7/1/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>7/17/2025</i>

HOUSE No. 1188

By Representatives Higgins of Leominster and Barber of Somerville, a petition (accompanied by bill, House, No. 1188) of Natalie M. Higgins, Christine P. Barber and others relative to healthcare coverage for certain gender affirming care. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to trans-inclusive health care access.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after section 17S the following section:-

3 Section 17T. The commission shall not reject a written verification or certification from a
4 health care provider, including, but not limited to, a qualified mental health care professional, for
5 accessing gender-affirming care, unless the written verification or certification clearly does not
6 satisfy minimum requirements under established clinical guidelines, nor shall the commission
7 require more than one written verification or certification that the care is required for the
8 treatment of gender dysphoria,.

9 For purposes of this section, the term “qualified mental health care professional” shall,
10 unless the context clearly requires otherwise, mean a mental health professional who meets the
11 minimum credentials, training and standards of care for working with gender dysphoric adults
12 and adolescents developed by the World Professional Association for Transgender Health.

SECTION 2. Chapter 118E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 10Q the following section:-

Section 10R. The division shall not reject a written verification or certification from a health care provider, including, but not limited to, a qualified mental health care professional, for accessing gender-affirming care, unless the written verification or certification clearly does not satisfy minimum requirements under established clinical guidelines, nor shall the division require more than one written verification or certification that the care is required for the treatment of gender dysphoria.

For purposes of this section, the term “qualified mental health care professional” shall, unless the context clearly requires otherwise, mean a mental health professional who meets the minimum credentials, training and standards of care for working with gender dysphoric adults and adolescents developed by the World Professional Association for Transgender Health.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting after section 47UU the following section:-

Section 47VV. No insurer or producer authorized to issue policies of insurance pursuant to sections 108 or 110 shall reject a written verification or certification from a health care provider, including, but not limited to, a qualified mental health care professional, for accessing gender-affirming care, unless the written verification or certification clearly does not satisfy minimum requirements under established clinical guidelines, nor shall any insurer or producer require more than one written verification or certification that the care is required for the treatment of gender dysphoria.

For purposes of this section, the term “qualified mental health care professional” shall, unless the context clearly requires otherwise, mean a mental health professional who meets the minimum credentials, training and standards of care for working with gender dysphoric adults and adolescents developed by the World Professional Association for Transgender Health.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8VV the following section:-

Section 8WW. No corporation subject to this chapter shall reject a written verification or certification from a health care provider, including, but not limited to, a qualified mental health care professional, for accessing gender-affirming care, unless the written verification or certification clearly does not satisfy minimum requirements under established clinical guidelines, nor shall the corporation require more than one written verification or certification that the care is required for the treatment of gender dysphoria.

For purposes of this section, the term “qualified mental health care professional” shall, unless the context clearly requires otherwise, mean a mental health professional who meets the minimum credentials, training and standards of care for working with gender dysphoric adults and adolescents developed by the World Professional Association for Transgender Health.

SECTION 5. Chapter 176B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 4VV the following section:-

Section 4WW. No corporation subject to this chapter shall reject a written verification or certification from a health care provider, including, but not limited to, a qualified mental health care professional, for accessing gender-affirming care, unless the written verification or certification clearly does not satisfy minimum requirements under established clinical guidelines,

56 nor shall the corporation require more than one written verification or certification that the care
57 is required for the treatment of gender dysphoria,.

58 For purposes of this section, the term “qualified mental health care professional” shall,
59 unless the context clearly requires otherwise, mean a mental health professional who meets the
60 minimum credentials, training and standards of care for working with gender dysphoric adults
61 and adolescents developed by the World Professional Association for Transgender Health.

62 SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after
63 section 4NN the following section:-

64 Section 4OO. No health maintenance organization subject to this chapter, and no officer
65 or agent thereof, shall reject a written verification or certification from a health care provider,
66 including, but not limited to, a qualified mental health care professional, for accessing gender-
67 affirming care, unless the written verification or certification clearly does not satisfy minimum
68 requirements under established clinical guidelines, nor shall a health maintenance organization
69 require more than one written verification or certification that the care is required for the
70 treatment of gender dysphoria,.

71 For purposes of this section, the term “qualified mental health care professional” shall,
72 unless the context clearly requires otherwise, mean a mental health professional who meets the
73 minimum credentials, training and standards of care for working with gender dysphoric adults
74 and adolescents developed by the World Professional Association for Transgender Health.